

COMMONWEALTH OF MASSACHUSETTS
EXECUTIVE OFFICE OF ENERGY AND ENVIRONMENTAL AFFAIRS
DEPARTMENT OF ENVIRONMENTAL PROTECTION

In the Matter of
Anthony Delapa, Delapa Properties

OADR Docket No. WET-2016-022
Westwood, MA

SETTLEMENT AGREEMENT

I. The Parties

1. The Department of Environmental Protection ("the Department") is a duly constituted agency of the Commonwealth of Massachusetts, established pursuant to M.G.L. c. 21A, § 7, with a principal office located at One Winter Street, Boston, Massachusetts 02108, and a regional office located at 205B Lowell Street Wilmington, Massachusetts 01887.
2. Applicant, Anthony Delapa has a mailing address of 511 Washington St., Norwood, MA 02062.
3. The Westwood Conservation Commission (WCC) is a municipal conservation commission with an address of 50 Carby Street, Westwood, MA 02090.
4. Collectively, the Department, Anthony Delapa and the WCC will hereinafter be referred to as "the Parties."

II. Settlement Agreement

5. Pursuant to M.G.L. c. 30A and 310 CMR 1.01(8)(c), the Parties agree to the issuance of a Final Decision incorporating this Settlement Agreement ("Agreement") and the attached Final Order Resource Area Determination (FORAD) and submit this Agreement for approval as required by 310 CMR 1.01(8)(c) in order to resolve the above-referenced adjudicatory proceeding as set forth in this Agreement.
6. This Agreement settles and releases all claims of the Parties raised in this proceeding.
7. Upon the issuance of such Final Decision, the Parties hereby agree that any right to additional administrative review before the Department and to appeal to any Court shall be waived.
8. No provision of this Agreement shall be construed as or operate as barring, diminishing, adjudicating or in any way affecting any legal or equitable right of the Department to enforce this Agreement, or in any way affecting any other claim, action, suit, cause of action, or demand that the Department may initiate regarding any act or omission not addressed in the Agreement.
9. This Agreement constitutes the entire understanding and agreement between the Parties with respect to the subject matter of this Agreement.
10. The Department is not a party to, and does not assume any liability for, any agreement or other binding obligation entered into by or on behalf of the other Parties, individually or

collectively, related to the actions and the responsibilities that are assigned to Applicants by this Agreement.

11. The provisions of this Agreement and any amendments hereto shall be binding upon the Parties and their successors in interest.

12. This Agreement shall be construed and interpreted in accordance with the laws of the Commonwealth of Massachusetts.

13. This Agreement may be executed in counterparts, each of which when executed and delivered to the Department shall be an original. All counterparts shall constitute one and the same instrument.

14. The Parties voluntarily enter into this Agreement because each has mutually agreed that settlement of this matter without costly and protracted litigation is in the best interest of the citizens of the Commonwealth of Massachusetts and of the Parties and that execution of this Agreement without such litigation is the most appropriate means of resolving this matter.

15. Applicants shall allow both the Department and the Town, and their authorized representatives, to enter and inspect the Site at all reasonable times for the purpose of investigating, sampling or inspecting any records, condition, equipment, practice or property relating to activities subject to this Agreement. Notwithstanding any provisions of this Agreement, the Department and the Town retain all of their access authorities and rights under applicable state and federal law.

16. Each signatory to this Agreement certify by their signature below that she/he is duly authorized to execute this Agreement and legally bind their respective parties.

17. The Parties understand that any Final Decision incorporating this Agreement and FOC shall not be subject to 310 CMR 1.01(14)(b).

IN WITNESS WHEREOF the parties have duly executed this Agreement.

MASSACHUSETTS DEPARTMENT OF
ENVIRONMENTAL PROTECTION

By: _____

Eric Worrall,
Regional Director
MassDEP Northeast Regional Office

Date: 11/21/16

APPLICANT ANTHONY DELAPA

By: _____

as Counsel for
Anthony Delapa

Date: 11/10/2016